

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE CREATING CHAPTER 8.29, HOOD SYSTEM CLEANING COMPANIES, OF TITLE 8, HEALTH AND SAFETY, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING."

BE IT HEREBY ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE WYOMING:

Section 1. That Chapter 8.29, Hood System Cleaning Companies, of Title 8, Health and Safety, of the code of the City of Cheyenne, Wyoming, is hereby created as set out in this ordinance.

Chapter 8.29

HOOD SYSTEM CLEANING COMPANIES

8.29.010 Definitions.

The following definitions shall apply in the interpretation and enforcement of the following provisions relating to hood system cleaning and equipment.

"Cleaning and returning to service hood system" means servicing of the hood system, including any or all of the following: washing, maintaining, inspecting, returning to service, and providing documentation of the work performed.

"Commercial Cooking Appliances" means appliances used in commercial food service establishments for heating and cooking food and which produce grease laden vapors, steam, fumes, smoke, or odors that are required to be removed through a local exhaust ventilation system. Such appliances include deep fat fryers, upright broilers, griddles, broilers, steam-jacketed kettles, hot-top ranges, underfired broilers (charbroilers), ovens, barbecues, rotisseries, and similar appliances. For the purpose of this definition, a food service establishment shall include any building or portion thereof used for the preparation and serving of food.

"Hood system" means an air-intake device used to capture by entrapment, impingement, adhesion, or similar means, grease and similar contaminants before they enter the duct system. The types of hood systems are:

Type I. A kitchen hood system for collection and removing grease vapors and smoke.

Type II. A general kitchen hood system for collecting and removing steam vapor, heat, odors, and products of combustion.

8.29.020 Business license required.

Every company who cleans hood systems as defined by 8.29.010 is required to obtain a business license to perform hood system cleaning. A licensed company is allowed to have one licensed member supervise no more than three additional non-licensed employees on the same job. An application and a non-refundable annual licensing fee of ninety dollars (\$90.00) must be submitted to the office of city clerk. Upon approval by the fire marshal, or his or her designee, the city clerk shall issue a license which will be effective for one year from date of issuance. General licensing provisions set forth in Chapter 5.04 of the city code apply to this type of license.

8.29.030 Servicing and testing.

All persons licensed must clean and inspect all hood systems and equipment in accordance with the International Fire Code, as adopted and referenced in Chapter 8.12 of the city code.

8.29.040 Examination.

Applicants for a hood system cleaning license shall have successfully passed a written examination administered by a recognized association or group meeting the standard of NFPA 96. The applicant must submit proof of recognized certification to be approved by the city. The examination may be supplemented by practical tests or demonstrations deemed necessary to determine the applicant’s knowledge and ability to clean hood systems and related equipment. The results of the examination shall be forwarded to the office of city clerk to accompany the license application.

8.29.050 Insurance.

All persons licensed are required to maintain current general liability insurance equal to the minimum amount required of all other contractors pursuant to the provisions of Chapter 5.44 of the city code.

8.29.060 Tagging of cleaned hood systems and related equipment.

When a licensee cleans and returns the hood system and its related equipment back into service, a tag shall be affixed that at least states the month and year the service is performed, the type of work completed, and the name and license number of the licensee. Further documentation of the reported work is required to be sent to the fire prevention division of the fire department within seven days of completed work. Only pre-approved forms meeting the requirements of NFPA 96 and the fire prevention division of the fire department will be accepted as documentation of work performed.

Section 2. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____
SECOND READING: _____
THIRD AND FINAL READING: _____

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

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